



TARSAN INTERNATIONAL PTE LTD

SALES CONTRACT

No. TIPL/3527/22-23

Date: 3rd Jun 2022

Seller: TARSAN INTERNATIONAL PTE. LTD.

26, Sin Ming Lane, #06-122,
Midview City, Singapore 573971
t : +65 6334 2250; f : +65 6570 3595
RCB No. 200608177K

Buyer: G.K. MICROMETALS PVT LTD

H-32, Gandhi Nagar, Gwalior (M.P.)-474002, India

Factory (Billing) Address : 39, Industrial Area, Banmore(Morena)

Madhya Pradesh, Pin- 476444, India

PIC : Mr. Sanjiv Kumar Kuchiya – Director

Ph. +91-9425111787; Fax: 91-751-2456587

IE CODE : 1111007144 ; Pan No.AABCG7612E

GST No. 23AABCG7612E1Z3 ; Email gkmicrometals@gmail.com

The Seller hereby agrees to sell and the Buyer hereby agrees to purchase the following goods on the following specific terms and conditions:

1. Description of goods :

ALUMINIUM SCRAP – TOUGH TABOO AS PER ISRI

HS Code : 76020010

2. Total Quantity : 20 MT (+/- 10%)

3. Unit Price : USD2540.00 PMT CIF NHAVA SHEVA PORT, India (Incoterms 2020) Final Destination: ICD MALANPUR

(Inland haulage charges are on Seller's account)

All taxation, duties, levies or charges of any kind at the destination customs or any other Govt authorities at the Destination country are solely to the buyer's A/C.

4. Total Amount : US\$50,800.00

(US Dollars fifty thousand and eight hundred only)

5. Origin : Singapore

6. Packing : Loose bales/briquette

7. Insurance : Clause-A Insurance covered by Seller

8. Shipment : By 1 x 20 feet container in Jun'22 (subject to vessel space)

9. Shipping mark : NO SHIPPING MARKS

10. Transshipment : Allowed

Partial shipment : Allowed

Port of Loading : Any Singapore Port

Port of Discharge : NHAVA SHEVA Port

Final Destination: ICD MALANPUR, INDIA




11. Payment :

20% Advance TT to be remitted to Seller's bank account on or before 9th Jun 2022 and the balance payment to be arranged by buyer through DP SIGHT for the documents sent through buyer's bank (STATE BANK OF INDIA, SME Branch, City Centre, Zonal Office Premises, Gwalior (M.P.)-474002, India, Swift Code : SBIININBB178, A/C NO. 10554658341, Ph no. 91-751-2447551/7555) and the payment for DP documents to be arranged by buyer within 3 working days upon receipt of document at their bank counter or before the vessel arrival at the destination.

Seller's bank details:-

STANDARD CHARTERED BANK, Singapore Branch,

SWIFT : SCBLSGSG

USD A/C NO. 137 901 4473

Beneficiary Name: TARSAN INTERNATIONAL PTE LTD

Other conditions: -

- Ten percent more or less in each quantity and amount acceptable;
- Third party documents except Bill of Lading, draft & invoice acceptable.
- Documents to allow any type of typographical error acceptable which does not affect quantity, unit price and value. This will not be considered as discrepancies.
- DP DOCUMENTS to be accepted and paid by buyer immediately upon arrival of the vessel at the destination port and any delay in effecting the payment will attract interest at the rate of 8% from the date of shipment.
- If the original documents are not retired by the buyer on time, then the seller has the right to recall the original documents and divert the cargo to some other buyer. By signing this contract, buyer agrees to this condition and gives rights to seller to sell the cargo under this contract to party that seller find deem fit. Under such circumstances, this signed contract considered as NOC from buyer to divert the cargo to new consignee. All the costs and expenses incurred by seller for this process is to the account of buyer.

The DOCUMENTS required: -

- Signed Commercial Invoice in triplicate;
- Full Set (3/3) of Originals "Clean on Board" Bill (s) of Lading made out to order of issuing bank marked Freight Prepaid and Notify the Applicant as per L/C.
- Packing list in duplicate.
- Certificate of Origin issued by beneficiary.
- Insurance Certificate
- Form-6 & 9
- CECA form (FTA)
- PSIC (will be sent by courier directly to buyer or their agent)

12. Period of Presentation of documents:

- Documents to be presented for DP payment through bank within 21 days after the date of shipment.
- Latest date of shipment is 30th Jun 2022.

13. Other terms and conditions:

Invoicing on actual weight net for net basis.

In case of delay in presenting the original Bill of lading, Shipping Company shall allow the consignee to clear the goods with the non-negotiable copy of B/L and original banker's guarantee.

Seller will try and negotiate 14 days container free detention at the discharge port with the shipping company or their agent while booking containers.

Franchise of 0.5% is applicable on the Bill of lading quantity while weight determination at discharge port.

The buyer has the right to get the goods inspected by SGS or any other Internationally recognized inspection agency at the port of discharge and the claim relating to quality & quantity, if any, will have to be informed to the Seller by Buyer in writing along with the detailed inspection report & Photograph within 10 days from the date of discharge of containers at the port of discharge for the Seller's consideration.



DECLARATION: -

Based on our visual inspection, we confirm that the consignment does not contain any type of arms, ammunitions, mines, shells, cartridges, radio active, contaminated or any other explosive material in any form either used or otherwise.

14. Force Majeure :

If any performance of this contract is prevented or delayed in whole or in part, by reason of any prohibition of exportation, flood, typhoon, fire, war, armed conflict, civil commotion, strike or other labour disputes, severe economic dislocation, peril or accident of the sea, the bankruptcy or insolvency of manufacturers or suppliers directly or indirectly, or any other causes beyond the reasonable control of Seller or of the manufacturers or suppliers of the goods, Seller shall not be liable for the non-performance of this contract including non-shipment or late shipment of the goods, and Buyer shall accept any shipment made within a reasonable time, or shall accept the cancellation of all or any part of this contract at Seller's option.

15. Title and Risk :

Title of goods shall pass from Seller to Buyer upon Seller's receipt of the full payment as per this contract. Risk of loss shall pass from Seller to Buyer upon delivery of material over ships rail at load port.

16. Governing Law & Arbitration:

This contract shall be governed by and construed in accordance with the Laws of Singapore. Any dispute or claim arising out of or relating to this contract shall be settled amicably as far as possible, but in case of failing, it shall be settled by the arbitration in Singapore pursuant to the laws and regulations of Singapore, whose decision shall be final and enforceable to both parties and the loser, shall bear its cost. SIAC rules applicable.

17. General Condition:

- The responsibility of the Seller is restricted to supply of goods and in no event shall Seller be liable for prospective profits or indirect, special or consequential damages or losses.
- All other terms and conditions are as per TARSAN INTERNATIONAL PTE. LTD., General Terms and Conditions for sales contract.
- This contract comes into effect from signing date, any amendment and additional clauses to these conditions shall be valid only if made in writing and duly confirmed by the two parties. This contract is made in English and being signed through fax.
- The contract is issued by seller in duplicate and buyer has to return the duplicate copy duly signed and stamped on or before 7th Jun 2022 as a token of acceptance to Seller failing which this contract will be subject to reconfirmation by the Seller.

For and on behalf of the Seller
TARSAN INTERNATIONAL PTE LTD

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V.G. Balachander - Director

For and on behalf of the Buyer

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Name:
Seal :